

Terms of Service — Brush & Bloom

Last updated: July 22, 2026

Please read these Terms of Service carefully before ordering from Brush & Bloom, operated by Kendyl Marie Bloomer as a sole proprietorship based in North Carolina. By placing an order or otherwise using this website, you agree to these Terms.

1. Our Products

The Banner Belle offers:

- **Custom hand-painted banners** — made to order based on the design details, colors, wording, and theme you provide
- **Ready-to-ship banners** — pre-made items available for immediate shipment

Because each custom banner is hand-painted by hand, no two are identical. Minor variations in color, brush stroke, spacing, or layout compared to a digital mockup are normal and are part of the handmade nature of the product — not a defect.

2. Custom Orders & Mockup Approval

- When you place a custom order, you agree to provide clear details (wording, spelling, size, color scheme, theme, and any inspiration images).
- **You are responsible for reviewing and approving spelling, names, dates, and wording** before production begins. Once you approve a mockup, we are not responsible for errors that were present in the approved mockup.
- A digital mockup or sketch may be provided prior to painting, depending on the product. Final colors may appear slightly different in person than on a screen due to monitor/device display differences.
- Standard turnaround time is approximately **1–2 weeks** from mockup approval, not including shipping time. Turnaround may be longer during peak seasons (e.g., graduation, holidays).

3. Payment

- Full payment is due at the time of order to begin production.
- We accept the payment methods listed at checkout
- Prices are listed in USD and are subject to change without notice; the price at the time you place your order is the price you pay.

4. Cancellations, Changes & Refunds

- Because custom banners are made specifically for you, **once production has started, custom orders cannot be canceled and are non-refundable.**
- If you need to cancel or make major changes before production begins, contact us as soon as possible at kmb4kendyl@gmail.com. We'll do our best to accommodate changes made before painting starts, but cannot guarantee changes once work is underway.
- Ready-to-ship items are subject to our separate Refund Policy
- If your banner arrives damaged in shipping or with a genuine production error (not related to an error in an approved mockup), contact us within 7 days of delivery with photos so we can make it right.

5. Shipping

- We ship to the address provided at checkout — please double-check it before submitting your order, as we are not responsible for packages sent to an incorrect address you provided.
- Estimated shipping times are separate from production/turnaround time and are provided at checkout or in our Shipping Policy.
- Risk of loss and damage in transit is addressed in our Shipping Policy; please review it for carrier-related issues.

6. Intellectual Property

- All designs, artwork, mockups, and photos created by Brush & Bloom remain the intellectual property of Brush & Bloom (Kendyl Marie Bloomer), including designs made for your custom order.
- Purchasing a banner gives you the right to use and display it for personal, non-commercial purposes (e.g., your event, your home, sharing photos on social media with credit appreciated).
- You may not reproduce, resell, mass-produce, or use our designs and artwork for commercial purposes without our prior written permission.
- We may photograph and share images of finished banners (including ones made for you) on our website and social media for promotional purposes, unless you request otherwise in writing.

8. Limitation of Liability

To the fullest extent permitted by law, Brush & Bloom is not liable for:

- Indirect, incidental, or consequential damages arising from the use, display, or transport of a banner (e.g., damage during an event, weather exposure, improper hanging)
- Delays caused by shipping carriers, weather, or circumstances beyond our reasonable control

Our total liability for any order is limited to the amount you paid for that order.

9. Website Use

You agree not to use this website for any unlawful purpose, to attempt to interfere with its operation, or to copy/scrape its content or images without permission. All website content (text, photos, logos) is owned by Brush & Bloom unless otherwise noted.

10. Changes to These Terms

We may update these Terms from time to time. Changes will be posted on this page with an updated date. Continued use of the site or future orders after changes are posted means you accept the updated Terms.

11. Governing Law

These Terms are governed by the laws of the State of North Carolina, USA, without regard to conflict-of-law principles. Any disputes shall be resolved in the state or federal courts located in North Carolina.

12. Contact Us

Questions about these Terms? Reach out at kmb4kendyl@gmail.com
